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Secretary for
Environmental
Protection

California Regional Water Quality Control Board

Central Valley Region

Steven T. Butler, Chair



Gray Davis
Governor

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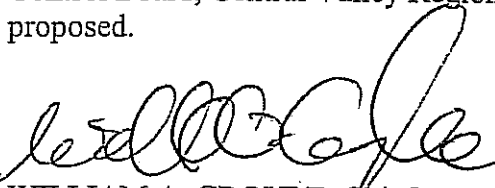
20 September 2000

Mr. John Magistad, President
Spanish Flat Water District
4310 Knoxville Road
Napa, CA 94558

CERTIFIED MAIL
Z 100 456 232

NOTICE OF ADOPTION
OF
UPDATED WASTE DISCHARGE REQUIREMENTS
FOR
BERRYESSA PINES SUBDIVISION AND
SPANISH FLAT WATER DISTRICT
NAPA COUNTY

Enclosed is an official copy of Order No. 5-00-200 as adopted by the California Regional Water Quality Control Board, Central Valley Region, on 15 September 2000. The Order was adopted as originally proposed.


WILLIAM A. CROYLE, Chief
Waste Discharge to Land Unit
Lower Sacramento River Watershed

Enclosures — Adopted Order
Standard Provisions

cc: (Refer to following page)

Mr. John Magistad, President
Spanish Flat Water District

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20 September 2000

cc: Ms. Frances McChesney, Office of Chief Counsel, State Water Resources Control Board,
Sacramento
Division of Water Quality, State Water Resources Control Board, Sacramento
Department of Health Services, Environmental Management Branch, Sacramento
Department of Health Services, Office of Drinking Water, Santa Rosa
Department of Fish and Game, Region III, Yountville
Napa County Environmental Health Department, Napa
Napa County Planning Department, Napa
Napa County Mosquito Abatement District, Napa
Mr. Bill Stockman, Spanish Flat Water District, Napa
Mr. Butch Taggart, Spanish Flat Water District, Napa
Ms. Ethel McElfresh, Yuba City

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 5-00-200

WASTE DISCHARGE REQUIREMENTS
FOR
BERRYESSA PINES SUBDIVISION
AND
SPANISH FLAT WATER DISTRICT
NAPA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. On 27 April 1990, the Board adopted WDRs Order No: 90-118, prescribing requirements for a discharge from the Berryessa Pines Subdivision and Spanish Flat Water District (hereafter jointly referred to as "Discharger") to an evaporation-percolation pond.
2. Order No. 90-118 is neither adequate nor consistent with current plans and policies of the Board.
3. The Discharger treats and disposes of domestic wastewater from a residential service area consisting of approximately 73 homes. Sewage from most of the subdivision flows to a pump station at the east end of the site, and then to an extended aeration plant. Sewage from a small portion of the subdivision flows by gravity directly to the plant. Effluent from the extended aeration plant, up to 14,000 gallons per day (gpd), is discharged to one of two evaporation-percolation ponds.
4. The facility is in Sections 22 and 23, T9N, R4W, MDB&M, as shown in Attachment A, which is attached hereto and part of the Order by reference.
5. Surface water drainage is to Lake Berryessa. The beneficial uses of Lake Berryessa are domestic, municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; groundwater recharge; freshwater replenishment; hydropower generation; and preservation and enhancement of fish, wildlife, and other aquatic resources.
6. Beneficial uses of groundwater in the area around the facility are domestic, municipal, industrial, and agricultural supply.
7. The Board adopted a Water Quality Control Plan, Fourth Edition, for the Sacramento River and San Joaquin River Basins (hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.

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SPANISH FLAT WATER DISTRICT
NAPA COUNTY

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8. The Basin Plan encourages reclamation.
9. The action to update waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with the California Code of Regulations (CCR) Title 14, Section No. 15261. This exemption reflects the ongoing nature of the operator's wastewater facilities project, originally approved in 1990, and does not provide for any net increase in treatment or disposal capacity from Order No. 90-118.
10. The Board has considered antidegradation pursuant to State Board Resolution No. 68-16 and finds that the discharge is consistent with those provisions, and will not cause an increase in groundwater constituents above that of background levels.
11. Section 13267(b) of the California Water Code provides that: "In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of discharging, or who proposes to discharge waste outside of its region that could affect the quality of waters of the state within its region shall furnish, under penalty of perjury, technical monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports."
12. This discharge is exempt from the requirements of Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in CCR, Title 27, Division 2, Subdivision 1, Section 20005, et. seq. (hereafter Title 27). The exemption, pursuant to Section 20090(b), is based on the following:
 - a. The Board is issuing waster discharge requirements, and
 - b. The discharge complies with the Basin Plan, and
 - c. The wastewater does not need to be managed according to CCR, Title 22, Division 4.5, Chapter 11, as a hazardous waste.
13. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.

14. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 90-118 is rescinded and that Berryessa Pines Subdivision and Spanish Flat Water District, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. The discharge of waste classified as 'hazardous', as defined in Sections 2521(a) of CCR, Title 23, Section 2510, et. Seq. (hereafter Chapter 15), or 'designated', as defined in Section 13173 of the California Water Code, is prohibited.

B. Discharge Specifications:

1. Neither the treatment nor the discharge shall cause a nuisance or condition of pollution as defined by the California Water Code, Section 13050.
2. The discharge shall not cause degradation of any water supply.
3. The monthly average dry weather discharge flow shall not exceed 0.014 million gallons per day (mgd).
4. Collected screenings, sludges, and other solids removed from the liquid wastes shall be disposed of in a manner that is consistent with Title 27 and approved by the Executive Officer.
5. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater collection, treatment and disposal areas (or property owned by the Discharger).
6. As a means of discerning compliance with Discharge Specification No. B.5, the dissolved oxygen content in the upper zone (1 foot) of wastewater in ponds shall not be less than 1.0 mg/l.

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SPANISH FLAT WATER DISTRICT
NAPA COUNTY

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7. Ponds shall not have a pH less than 6.5 or greater than 8.5 in the upper zone (1 foot) of wastewater ponds.
8. The treatment and storage facilities shall be designed, constructed, operated and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
9. A minimum 1.0-foot of freeboard shall be maintained in the ponds at all times.
10. On or about 1 **October** of each year, available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specification No. B.8.
11. The ponds shall be managed to prevent breeding of mosquitoes. In particular,
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
12. Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.

C. Sludge Disposal

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in CCR, Title 27, Division 2, Subdivision 1, Section 20005, et. Seq. and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice from a previously approved practice shall be reported to the Executive Officer and the U.S. Environmental Protection Agency (EPA) Regional Administrator at least 90 days in advance of the change.
3. Use and disposal of sewage shall comply with existing Federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR 503.

If the State Water Resources Control Board and the Regional Water Quality Control Boards are given the authority to implement regulations contained in 40 CFR 503, this Order may be reopened to incorporate appropriate time schedules and technical standards. The Discharger must comply with the standards and time schedules contained in 40 CFR 503 whether or not they have been incorporated into this Order.

D. Groundwater Limitations:

The discharge, in combination with other sources, shall not cause underlying groundwater to contain waste constituents in concentrations statistically greater than background water quality, except for coliform. For coliform, increases shall not cause the most probable number of total coliform organisms to exceed 2.2/100ml over any 7-day period.

E. Provisions:

1. The Discharger shall not allow pollutant-free wastewater to be discharged into the collection, treatment, and disposal system in amounts that significantly diminish the system's capability to comply with this Order. Pollutant-free wastewater means rainfall, groundwater, surface water, cooling waters, and condensates that are essentially free of pollutants.
2. The Discharger shall comply with the Monitoring and Reporting Program (MRP) No. 5-00-200, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
3. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements", dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
4. As required by MRP Order No. 5-00-200 and Standard Provisions, dated 1 March 1991, the Discharger shall conduct daily inspections of wastewater collection and disposal facilities, including pond levels, and report any discharge of wastewater to surface waters and/or surface water drainage courses to the Regional Board within 24 hours of discovering the discharges. All reports shall be submitted to the Regional Board in writing within 72 hours.
5. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or

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SPANISH FLAT WATER DISTRICT
NAPA COUNTY

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operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

6. The Discharger shall report promptly to the Board any material change or proposed change in the character, location, or volume of the discharge.
7. At least 90 days prior to termination or expiration of any lease, contract, or agreement-involving disposal used to justify the capacity authorized herein and assure compliance with this Order, the Discharger shall notify the Board in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this Order.
8. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement actions, including Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
9. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.
10. The Board will review this Order periodically and will revise requirements when necessary.

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 15 September 2000.


GARY M. CARLTON, Executive Officer

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 5-00-200

FOR
BERRYESSA PINES SUBDIVISION
AND
SPANISH FLAT WATER DISTRICT
NAPA COUNTY

Monitoring and Reporting Program (MRP) No. 5-00-200 and the Standard Provisions and Reporting Requirements (Standard Provisions) dated 1 March 1991, are part of Waste Discharge Requirements (WDRs) No. 5-00-200. Both the WDRs and the Standard Provisions require compliance with this MRP. Failure to comply with the MRP or the Standard Provisions constitutes non-compliance with the WDRs and the Water Code, and can result in the imposition of civil monetary liability.

POND MONITORING

Effluent samples shall be collected at the point of discharge to each pond (within one foot of the pond surface) at a location adjacent to the inflow pipe. Effluent samples should be representative of the volume and nature of the discharge and shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Flow	mgd	Cumulative	Daily	Monthly
Pond Freeboard	(± 0.1) feet	Visual	Weekly	Monthly
pH ¹	pH Units	Grab	Monthly	Monthly
Specific Conductivity ¹	μ mhos/cm	Grab	Monthly	Monthly
Dissolved Oxygen ¹	mg/L	Grab	Monthly	Monthly

¹ A hand held field unit may be used to measure dissolved oxygen, specific conductivity and pH.

OBSERVATIONS

The treatment plant, ponds, and pump stations shall be inspected daily and a summary submitted with the monthly report for the following:

- Discharges or overflows from the aeration tank, pond(s) or pump station(s); or
- Seepage through pond dikes or levees; or
- Any discharges or spills to the ground surface or surface water drainage courses.

REPORTING

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernable. Data shall be summarized in such a manner to illustrate clearly the compliance with waste discharge requirements. The results of any monitoring done more frequently than required at the locations specified in the Monitoring and Reporting Program shall be reported to the Board.

A. Monthly Monitoring Reports

Monthly monitoring reports shall be submitted to the Regional Board by the 1st day of the second month following the monitoring (i.e. the January report will be due March 1st). Monthly monitoring reports shall contain all monitoring data required as described above.

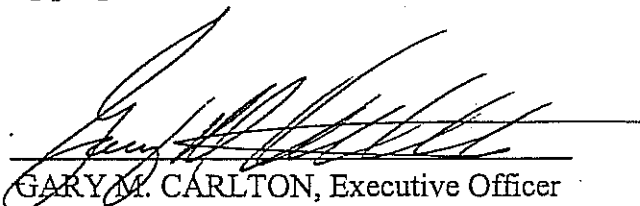
B. Annual Report

If requested by Staff, an Annual Report shall be prepared including all monitoring data required in the monthly schedule. The Annual Report shall be submitted to the Regional Board by 1 February each year. In addition to the data normally presented, the Annual Report shall include the following:

1. Tabular and graphical summaries of all data collected during the year.
2. An evaluation of the performance of the wastewater system, as well as a forecast of the flows anticipated in the next year.
3. A summary data table of water levels and freeboard in the tank and pond system.
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into full compliance with the waste discharge requirements.

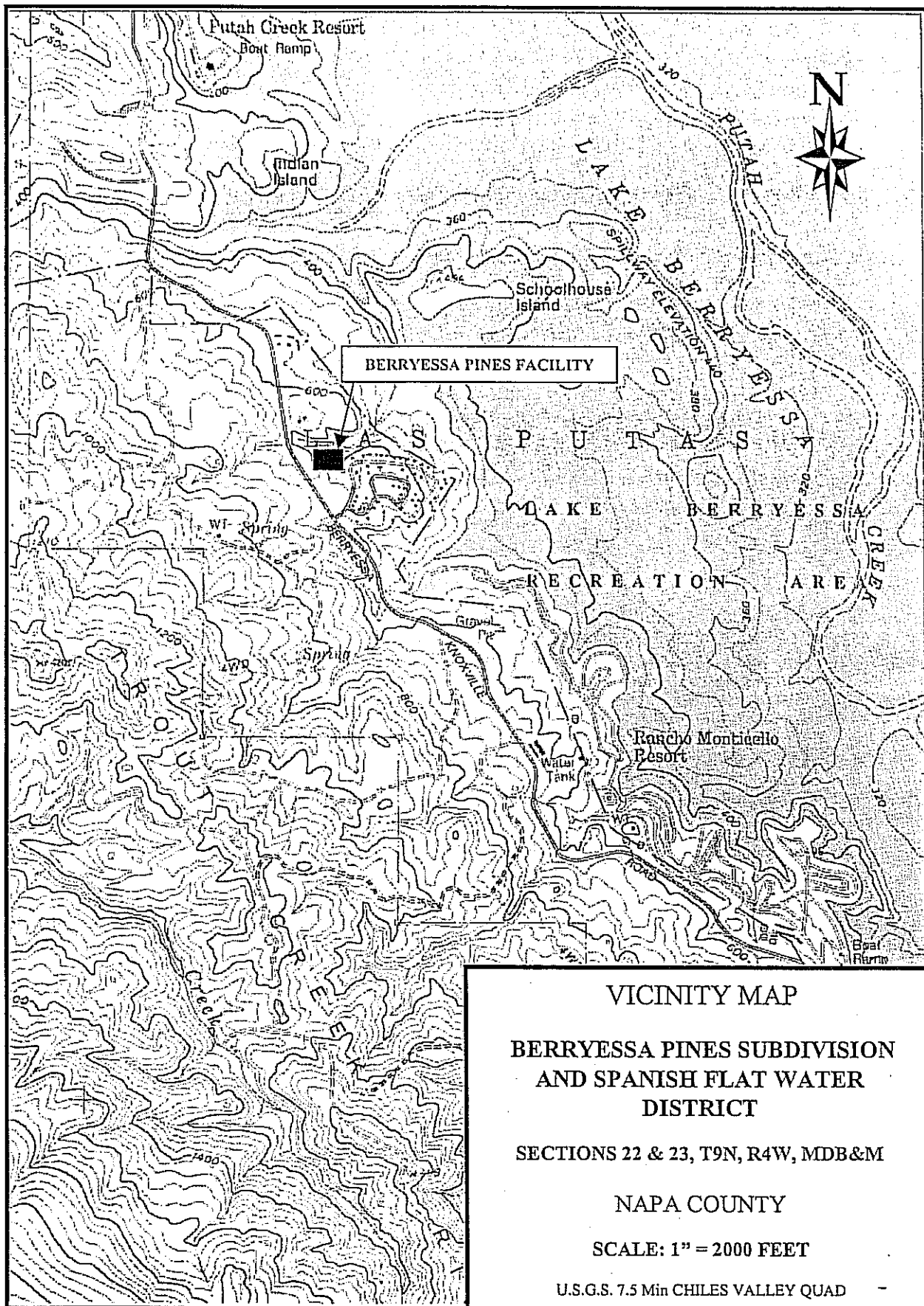
The Discharger shall implement the above monitoring program as of the date of this Order.

Ordered by:


GARY M. CARLTON, Executive Officer

15 September 2000

(Date)



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INFORMATION SHEET

ORDER NO. 5-00-200
BERRYESSA PINES SUBDIVISION
SPANISH FLAT WATER DISTRICT
NAPA COUNTY

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Order No. 90-118 is neither adequate nor consistent with current plans and policies of the Board.

The Discharger treats and disposes of domestic wastewater from a residential service area consisting of approximately 73 homes. The subdivision is located along the west shore of Lake Berryessa about one mile south of the bridge crossing the Putah Creek arm of the Lake.

Sewage from most of the subdivision flows to a pump station at the east end of the site, and then to an extended aeration plant. Sewage from a small portion of the subdivision flows by gravity directly to the plant. The pump station has had numerous problems with overflows. To correct this, a holding tank, alarm system and separate emergency pump have been installed. Effluent from the extended aeration plant is discharged to one of two evaporation-percolation ponds. The second pond is in place just east of the first pond, but has not been used to date.

The facility is in Sections 22 and 23, T9N, R4W, MDB&M, as shown in Attachment A, which is attached hereto and part of the Order by reference.

Beneficial uses of groundwater in the area around the facility are domestic, municipal, industrial, and agricultural supply.

The beneficial uses of surface water are domestic, municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; groundwater recharge; freshwater replenishment; hydropower generation; and preservation and enhancement of fish, wildlife, and other aquatic resources.

Surface water drainage is to Lake Berryessa.

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